

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Volha Shauchenka	Team: Squad #08	CCRB Case #: 201901388	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/05/2019 7:19 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/22/2021	Precinct: 49		
Date/Time CV Reported Thu, 02/14/2019 5:47 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 02/14/2019 5:47 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jason Guzman	03282	948041	049 PCT
2. POM Carlos Castillo	06632	964975	049 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Rainard Wroten	12955	957295	049 PCT
2. POF Nicole Longo	24988	962553	049 PCT
3. POM Brian Wallace	26843	965609	049 PCT
4. POM Cristian Diaz	14078	961737	049 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jason Guzman	Abuse: Sergeant Jason Guzman entered § 87(2)(b) in the Bronx.	A . Exonerated
B . POM Carlos Castillo	Abuse: Police Officer Carlos Castillo entered § 87(2)(b) in the Bronx.	B . Exonerated
C . SGT Jason Guzman	Abuse: Sergeant Jason Guzman damaged § 87(2)(b) § 87(2)(b) s property.	C . Unsubstantiated
D . SGT Jason Guzman	Abuse: Sergeant Jason Guzman searched § 87(2)(b) in the Bronx.	D . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On February 14, 2019, § 87(2)(b) filed this complaint on behalf of herself and her husband § 87(2)(b) with the CCRB via telephone.

On February 5, 2019, at approximately 7:19 p.m., PO Rainard Wroten, PO Nicole Longo, Sgt. Jason Guzman and PO Carlos Castillo, all of the 49th Precinct, responded to § 87(2)(b) in the Bronx in regards to the § 87(2)(g) dispute with their tenant § 87(2)(b). Sgt. Guzman and PO Castillo entered § 87(2)(b) (**Allegations A and B: Abuse of Authority, Exonerated**). Sgt. Guzman allegedly damaged the electrical switchboard located in the garage and searched the garage (**Allegation C: Abuse of Authority, Unsubstantiated; Allegation D: Abuse of Authority, Substantiated**).

§ 87(2)(b) and § 87(2)(b) were arrested as a result of this incident. § 87(2)(b) was charged with § 87(2)(b), while § 87(2)(b) was charged with § 87(2)(b) [NYPD 18, 19].

The incident was recorded by PO Castillo's, Sgt. Guzman's, PO Wroten's, PO Longo's, PO Brian Wallace's, and PO Christian Diaz's body-worn cameras (BWCs) [BR 22–37, *Originals*]. § 87(4-b), § 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Jason Guzman entered § 87(2)(b) in the Bronx.

Allegation (B) Abuse of Authority: Police Officer Carlos Castillo entered § 87(2)(b) in the Bronx.

It is undisputed that § 87(2)(b) and § 87(2)(b) rent the entire two-family house they own at § 87(2)(b) in the Bronx to three tenants, each of whom live on one floor, including the ground floor [BR 03]. § 87(2)(b) rents the apartment on the ground floor with her two children. On February 5, 2019, at 7:19 p.m., § 87(2)(b) called 911 to complain that § 87(2)(b) had turned the electricity off at her apartment and that § 87(2)(b) was arguing with her [NYPD 11]. During the call, § 87(2)(b) related to the operator she is seven months pregnant. At 7:21 p.m., § 87(2)(b) called 911 to report that § 87(2)(b) was turning off the heat in the entire house by accessing the boiler room without permission [NYPD 12]. At 7:31 p.m., § 87(2)(b) called 911 again and stated that § 87(2)(b) took a knife and slapped her in her face in front of her children [NYPD 13]. § 87(2)(b) added that § 87(2)(b) also pushed her, and later stated he was the one who took out the knife.

According to the BWC footage, PO Wroten and PO Longo responded to the scene first and spoke to the parties involved [BR 22]. Sgt. Guzman and his operator PO Castillo arrived a few minutes later [BR 24]. At some point, the officers made a decision to arrest § 87(2)(b) and § 87(2)(b).

In her verified statement to the CCRB, § 87(2)(b) stated that when § 87(2)(b) was being handcuffed, she asked the officers if she could take the property keys from

him to secure the house [BR 03]. The officers did not respond and handcuffed her as well. Sgt. Guzman then took the house keys from § 87(2)(b) and entered the house together with PO Wroten through the main door. § 87(2)(b) did not see where § 87(2)(b) was at the time and whether she went with them. She believed the officers went into the house to lock the doors. § 87(2)(b) provided the following layout of the house. The main entrance leads to the ground floor hallway, which is shared by all the tenants. The hallway leads to the entrance to § 87(2)(b)'s apartment as well as to the staircase that leads to the second and third floor. Next to § 87(2)(b)'s apartment, there are separate doors, which are normally kept locked, that lead into the boiler room and the garage. § 87(2)(b) and § 87(2)(b) were keeping their daughter's items in the garage.

Sgt. Guzman testified that § 87(2)(b) informed the officers that during her altercation with the landlords that occurred in the ground floor hallway, she lost her apartment keys and was unable to get inside [BR 38]. After § 87(2)(b) and § 87(2)(b) were arrested, § 87(2)(b) went inside the house, and Sgt. Guzman and PO Castillo followed her to interview her there due to a better lighting and to also help her locate her apartment keys. § 87(2)(b) did not object to the officers' presence inside the house. Sgt. Guzman did not recall § 87(2)(b) and § 87(2)(b) asking him to enter the house or make any requests to him.

PO Castillo's CCRB testimony was largely consistent with that of Sgt. Guzman [BR 39]. However, he also recalled that § 87(2)(b) and § 87(2)(b) asked the officers to close the doors to their property.

Based on Sgt. Guzman's BWC footage, video two of five, attached to IA83, at 0:38, an officer asked § 87(2)(b) if he still had knife on him, and § 87(2)(b) states, "Let me show you inside. Can I show you inside?" [BR 26]. Sgt. Guzman replies they do not want him to go inside for any weapons. At 1:10, § 87(2)(b) asks the officers if they can lock their house and inquiries about that again with her husband at 1:24. Sgt. Guzman replies that § 87(2)(b) is going inside the house. At 1:46, § 87(2)(b) asks the officers to turn the boiler off since it is leaking. At 2:37, Sgt. Guzman instructs other officers to place § 87(2)(b) and § 87(2)(b) in cars and states that he and PO Castillo will "go and take care of..." § 87(2)(b) asks the officers again to turn the boiler off, and Sgt. Guzman replies he would take a look at it. At 4:03, Sgt. Guzman asks PO Castillo if he has the house keys and states that he is going to lock it. The front door of the house has been open during the entirety of the incident.

According to Sgt. Guzman's BWC footage three of five, attached to IA84, at 0:06, Sgt. Guzman enters the house following § 87(2)(b)'s son, who is walking behind § 87(2)(b) [BR 27]. PO Castillo follows Sgt. Guzman and they have a brief conversation with § 87(2)(b) in the ground floor hallway leading to her apartment. She informs them the landlord has cut the heat and the electricity in her apartment and took her keys. She demonstrates that her apartment door is locked. Subsequently, the officers attempt to find § 87(2)(b)'s keys from the landlords and go to the backyard in order to try and unlock the back entrance to § 87(2)(b)'s apartment. They were prompted to go there by § 87(2)(b)'s son.

According to People v. Gonzalez, 39 NY2d 122 [1976], one of the exceptions to the warrant requirement for entry is consent [BR 43]. Consent is voluntary when it is a true act of will, an unequivocal product of free and unconstrained choice, and free of coercion. As per People v. Brown, 234 AD2d 211 [1st Dept. 1996], a resident's gesture of opening apartment door, leaving it wide open, and walking away from it was interpreted as a valid form of implied consent

[BR 44]. Finally, based on People v. Pacheco, 292 AD2d 242 [1st Dept. 2002], officers were justified in entering the apartment pursuant to a consent of a person who reasonably appeared to have authority to consent, who explicitly stated she lived in the apartment [BR 45].

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation (C) Abuse of Authority: Sergeant Jason Guzman damaged § 87(2)(b)
s property.

Allegation (D) Abuse of Authority: Sergeant Jason Guzman searched § 87(2)(g)
in the Bronx.

It is undisputed that Sgt. Guzman entered the garage inside the house, flipped some switches in the electrical switchbox and searched the garage.

§ 87(2)(b) stated that upon returning home from police custody, she was unable to open the garage door either with the remote or by pressing the button inside the garage [BR 03]. She believed that Sgt. Guzman might have inflicted damage to the garage since he earlier informed her that he had turned the lights on inside the house by flipping the switches in the switchbox. § 87(2)(b) did not make the search allegation since she did not witness it. It is being pleaded based on the video footage.

According to Sgt. Guzman's BWC footage, video three of five, attached to IA 84, at 2:17, while standing inside the house, § 87(2)(b) points into the garage, the door to which is open, stating that the landlords turned the electricity off and the switchbox is located there [BR 27]. At 2:27, Sgt. Guzman inquires where one can turn on the lights and electricity in the house, and § 87(2)(b) states she does not know but the electrical switchbox should be somewhere in the garage. At 3:09, after entering the garage, Sgt. Guzman confirms with § 87(2)(b) if he should be looking at the first floor and opens one of the switchboxes. His actions are not in the camera view but the sound of switches flipping is heard. § 87(2)(b) initially states that the lights went back on inside and then states she does not know if they did. After § 87(2)(b) and Sgt. Guzman unsuccessfully attempt to open her apartment with the keys that PO Castillo took from the landlords, § 87(2)(b) reiterates that her keys were on the floor by the entrance into the garage. At 6:35, Sgt. Guzman goes back into the garage and moves around some boxes and containers. At 7:21, he opens the drawers of a metal filing cabinet and looks inside. At 8:49, Sgt. Guzman walks outside and hands PO Castillo a knife, stating he recovered it from "the room" and recorded it on his BWC. Finally, at 14:59, after § 87(2)(b) asks the officers if they can "brace" her door off, both Sgt. Guzman and PO Castillo attempt to forcefully break it with their bodies. At 15:50, Sgt. Guzman asks PO Castillo if he has a knife, and PO Castillo

replies he does not. Sgt. Guzman then states he would attempt to get a “screw” in the garage, and ends the video recording.

Video four of five recorded by Sgt. Guzman’s BWC, attached to IA 88, depicts the events after § 87(2)(b) s door had been forcefully opened by the officers and the EMTs arrived on the scene [BR 31]. At 0:53, Sgt. Guzman tells the EMTs he is going to place a tool he used to pry the door open back into the garage.

During his CCRB interview, Sgt. Guzman acknowledged entering the garage but believed it was just a storage/boiler room with an open entry-way next to § 87(2)(b) s apartment [BR 38]. He stated that § 87(2)(b) suspected the landlords placed the keys somewhere in that room, therefore, he looked for the keys there. He conducted a visual inspection of the items in plain view and looked into slightly ajar drawers of a filing cabinet near the entrance. Sgt. Guzman recovered a knife sitting in plain view and gave it to another officer assuming it was the weapon of the crime. However, he did not have any particular knowledge whether the knife he recovered was actually involved in the menacing committed by one of the landlords. Sgt. Guzman denied looking into any other compartments in the garage.

Upon reviewing the video footage cited above, Sgt. Guzman stated he had no independent recollection of opening the switchboard and flipping the switches. He denied inflicting any damage to them nor did he recall if he was ultimately able to turn the lights on. Sgt. Guzman did not recall if he went into the garage to look for a screwdriver as he indicated at the end of the video.

PO Castillo testified he did not recall there being a garage nor did he recall the officers entering any other areas inside the house besides the ground floor hallway even after reviewing the BWC footage [BR 39]. He did not recall Sgt. Guzman search any areas of the garage either.

To ascertain whether an individual had a reasonable expectation of privacy, courts evaluate all the “Surrounding circumstances,” consider whether an individual took precautions to maintain privacy and the manner in which an individual used the property. People v Rodriguez, 69 NY2d 159 [1987] [BR 47].

§ 87(2)(g)
It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

§ 87(2)(g)
Consequently, it is recommended that **Allegation D** be closed as **substantiated**.

§ 87(4-b), § 87(2)(g)

[REDACTED]

Allegations not Pleaded

- Based on the video footage from Sgt. Guzman's BWC, attached to IA 84, it is undisputed that both Sgt. Guzman and PO Castillo forcefully opened the door to § 87(2)(b)'s apartment, which caused it to come off the hinges [BR 27]. A City Involved Accident Report was prepared in regards [NYPD 17]. § 87(2)(g) [REDACTED], even though the property belongs to § 87(2)(b) and § 87(2)(b).
- Video footage recorded by Sgt. Guzman, attached to IA 88, reveals that after he enters § 87(2)(b)'s apartment, he opens and looks inside the fridge [BR 31]. During his interview, Sgt. Guzman stated he just wanted to check if § 87(2)(b)'s children had enough food since they had been locked out of the apartment and had no electricity. § 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) and § 87(2)(b) have been parties [BR 42]. § 87(2)(g)
- Sgt. Guzman has been a member of service for 10 years and has been a subject in nine other CCRB complaints and 24 allegations, of which one was substantiated:
 - 201801502 involved a substantiated allegation of retaliatory arrest against Sgt. Guzman. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline.
 - Cases 20801502, 201805329, and 201806966 involve entry of premises allegations that were closed as exonerated, complaint withdrawn, and pending litigation, respectively.
- PO Castillo has been a member of service for one year and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- On July 12, 2019, a request to determine if a Notice of Claim was filed was submitted; confirmation from the New York City Office of the Comptroller will be forwarded upon receipt [BR 40].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 8

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

